

2:00 PM

LINE: 5

23-CIV-04358

DONALD V. RYAN VS. DOUGLAS J. RYAN, ET AL

DONALD V. RYAN
DOUGLAS J. RYAN

KATHLEEN E. FINNERTY
THOMAS C TAGLIARINI

DEFENDANT DOUGLAS RYAN’S MOTION REQUESTING AN ORDER REGARDING DISTRIBUTION OF SALE PROCEEDS AND RELATED RELIEF [CCP 873.820, 873.850]

TENTATIVE RULING:

Defendant Douglas J. Ryan’s Motion Requesting an Order Regarding Distribution of Sale Proceeds and Related Relief is **DROPPED AS MOOT**.

This is a partition action concerning real property located at 1735 Crockett Lane in Hillsborough, California (the “property”). Plaintiff Donald V. Ryan (“Donald”) and Defendant Douglas J. Ryan (“Douglas”) are siblings. Donald and Douglas each hold an undivided one-seventh interest as tenants in common, along with five other siblings: Barbara E. Poole, Margaret A. Ryan, Michael D. Ryan, Richard J. Ryan, and Roberta L. Ryan. The Court granted Donald’s motion for interlocutory judgment of partition on May 12, 2025, and entered the Interlocutory Judgment on June 4, 2025. On May 7, 2026, the Court denied without prejudice Michael D. Ryan’s and Douglas’s prior motion regarding distribution of sale proceeds.

On May 13, 2026, Douglas filed the present motion. Douglas seeks an order permitting the sale proceeds allocable to all co-owners other than Donald to be distributed through escrow in the ordinary course, while Donald’s allocable share is deposited into the Barbara W. Ryan Revocable Trust or, alternatively, held in escrow pending further order.

After Douglas filed this motion, the Court granted in part Douglas’s ex parte application on May 15, 2026. The May 15, 2026 order provides that the sale may proceed; proceeds allocable to co-owners other than Donald may be distributed through escrow in the ordinary course, subject to customary costs, charges, liens, and closing adjustments; and Donald’s allocable share shall be deposited into an interest-bearing blocked escrow or other neutral account pending further order. (May 15, 2026 Order.) The Court also stated that it was not finally adjudicating any party’s claims, defenses, offsets, credits, reimbursement claims, contribution claims, trust claims, or arguments concerning the validity, enforceability, or scope of the alleged agreements. (Ibid.)

The Court then signed an Amended Order on Douglas’s Motion Authorizing Sale of Real Property and Directing the Disposition of Proceeds on June 9, 2026. That order directs escrow to disburse the net sale proceeds to a Schwab interest-bearing account requiring the signatures of both Donald’s attorney and Douglas’s attorney for any withdrawals. (June 9, 2026 Order, ¶ 7.) Thus, the Court has already addressed the disposition of proceeds requested by this motion, including the treatment of Donald’s allocable share. Nothing remains to be decided on the pending motion. The motion is therefore **DROPPED AS MOOT**.

To the extent the parties’ supplemental papers address whether Douglas’s or Michael’s share of the sale proceeds should be withheld, that issue is not properly before the Court. Donald first raised that request in a supplemental opposition filed on June 18, 2026. The Court did not authorize supplemental briefing on this motion. Even if the Court considered the supplemental papers, no noticed motion has been filed and served seeking an order withholding Douglas’s or Michael’s allocable share. Accordingly, the Court does not reach that issue.

If any party later files a properly noticed motion concerning disposition of sale proceeds, the moving party shall address the statutory order of application under Code of Civil Procedure section 873.820. Under that section, sale proceeds must be applied first to expenses of sale; second to other costs of partition, in whole or in part, or to secure any cost of partition later allowed; third to liens on the property in order of priority, except liens that under the terms of sale remain on the property; and fourth to distribution of the residue among the parties in proportion to their shares as determined by the Court. (Code Civ. Proc., § 873.820, subds. (a)-(d).) Any future motion should identify, with supporting evidence, the amounts paid or proposed to be paid under section 873.820, subdivisions (a)-(c), the net residue available for distribution, and the requested distribution amount for each party. If partition costs are at issue, the moving party should also address sections 874.040 and, if applicable, 874.321.5.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court's signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE: 6

24-CLJ-02154

DISCOVER BANK VS. TERRY OLGIN

DISCOVER BANK
TERRY OLGIN

HARVEY M. MOORE

**PLAINTIFF DISCOVERY BANK’S MOTION TO (1) SET ASIDE NOTICE OF SETTLEMENT AND (2) ENTER JUDGMENT
PURSUANT TO STIPULATION**

TENTATIVE RULING:

Plaintiff Discover Bank’s Motion to Set Aside Notice of Settlement and Enter Judgment is **DENIED without prejudice** for lack of proof of service.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the County shall prepare for the Court’s signature a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
